

STATE OF NEW YORK

5605--C

2025-2026 Regular Sessions

IN SENATE

February 25, 2025

Introduced by Sens. KAVANAGH, FERNANDEZ, MAY -- read twice and ordered printed, and when printed to be committed to the Committee on Consumer Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to enacting the "washing machine microfiber filtration act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "washing
2 machine microfiber filtration act".

3 § 2. The general business law is amended by adding a new section 396-
4 uu to read as follows:

5 § 396-uu. Sale of washing machines; microfiber filtration. 1. Defi-
6 nitions. As used in this section, the following terms shall have the
7 following meanings:

8 a. "Microfiber filtration system" means a filter or other feature, or
9 a series of filters or other features, built into a washing machine or
10 packaged, sold, and installed with a washing machine that removes from
11 water used across all washing cycles ninety percent or more of fibers
12 and microfibers that are one hundred micrometers or larger.

13 b. "Washing machine" means a machine designed and used for washing
14 clothes and linen.

15 2. a. On and after January first, two thousand thirty, no new washing
16 machines shall be offered for sale or sold in the state without a micro-
17 fiber filtration system.

18 b. All new washing machines sold in the state with a microfiber
19 filtration system on or after January first, two thousand thirty shall
20 bear a conspicuous sticker or other label that is visible to the consum-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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er and that includes the following statement: "Notice: This washing machine includes a filtration system to capture microfibers." Such statement shall be followed by instructions regarding the manner and frequency with which the consumer should check the system's filters or other features and dispose of any fibers or microfibers captured.

3. a. A manufacturer of a washing machine that is subject to the requirements of subdivision two of this section shall provide each person that offers such washing machine for sale or distribution in the state with a certificate of compliance stating that the washing machine is in compliance with the requirements of this section and contains a microfiber filtration system. A certificate of compliance provided pursuant to this subdivision shall be signed by an authorized official of the manufacturer. The certificate of compliance may be provided electronically.

b. A distributor or retailer of a washing machine that is subject to the requirements of this section shall not be held in violation of this section if the distributor or retailer is not also the manufacturer of the washing machine and relied in good faith on the certificate of compliance provided by the manufacturer pursuant to paragraph a of this subdivision.

4. Notwithstanding the provisions of subdivision two of this section, on or before December thirty-first, two thousand thirty a distributor or retailer of washing machines that is not also a manufacturer of washing machines shall be permitted to offer for sale or to sell a washing machine that does not comply with the provisions of such subdivision, provided that such washing machine was acquired for sale within the state by such distributor or retailer on or before December thirty-first, two thousand twenty-nine.

5. The department of environmental conservation may adopt any rules or regulations it deems necessary for the implementation of the provisions of this section, including standards and procedures for determining whether a washing machine is compliant with the provisions of this section.

6. Upon an action brought by the attorney general, a city attorney, a county counsel, or a district attorney, a person or entity that violates this section shall be liable for a civil penalty not to exceed five hundred dollars for the first violation, and not to exceed one thousand dollars for each subsequent violation.

§ 3. This act shall take effect immediately.